

**25STCV10462 25STCV10462**

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-01

Motion: GENERAL MOTORS LLC'S DEMURRER TO PLAINTIFF'S SECOND AMENDED COMPLAINT

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Case Number: 25STCV10462 Hearing Date: September 1, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS  
ANGELES - CENTRAL DISTRICT

ANDREA MARQUEZ, an individual,

Plaintiff,

vs.

GENERAL MOTORS, LLC, A Delaware  
Limited Liability Company; and DOES 1 through 20, inclusive,

Defendants.

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CASE NO: 25STCV10462

[TENTATIVE] ORDER RE: GENERAL

MOTORS LLC'S DEMURRER TO PLAINTIFF'S SECOND AMENDED COMPLAINT

Dept. 731

September 1, 2026

8:30 a.m.

Matter No. 14

Moving Party: Defendant, General Motors, LLC

Opposing Party: Plaintiff, Andrea Marquez

Notice: OK

Background Facts

Plaintiff Andrea Marquez sues Defendant

General Motors, LLC ("GM") and Does 1 through 20 pursuant to a May 15, 2026, Second Amended Complaint ("SAC") alleging a common law claim for fraudulent concealment and statutory claims arising from the Song-Beverly Consumer Warranty Act ("SBA"), Business and Professions Code, and Consumer Legal Remedies Act ("CLRA").

Now before the Court are GM's opposed

(1) demurrer to the SAC's fifth cause of action for Violation of the CLRA and (2) motion to strike allegations relating to a 2024 vehicle from the pleadings as, in essence, irrelevant subject matter.

Demurrer

Meet and Confer

The moving papers establish a sufficient meet and confer process preceded the filing of GM's demurrer. (Demurrer, Roybal Decl., ¶ 2; see Code Civ. Proc., § 430.41, subd. (a)(3)(A).)

b. Legal  
Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747; see Code Civ. Proc., § 430.10, subd. (e).)

To sufficiently allege a cause of action, a complaint must allege all the ultimate facts—that is, the facts needed to establish each element of the cause of action pleaded. (Committee on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 212, superseded by statute as stated in Branick v. Downey Savings & Loan Assn. (2006) 39 Cal.4th 235, 242.) "[E]ach evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.)

In testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-67.) Courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, Jones v. Lodge at Torrey Pines Partnership (2008) 42 Cal.4th 1158, 1162.) A demurrer, however, "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

Discussion

The SAC's fifth cause of action alleges that GM violated Plaintiff's rights under the CLRA by way of four separate and distinct group of acts relating to two vehicles leased by Plaintiff and manufactured and/or distributed by GM. (See Complaint, ¶¶ 147-181.)

GM challenges the claim on the grounds that the Complaint fails to allege (1) sufficient facts amounting to pre-lawsuit notice of the CLRA claim from Plaintiff to GM, as required by statute, and (2) facts that plead underlying fraud with particularity. (Demurrer, pp. 5-8.)

After review, the Court finds in favor of Plaintiff.

i. Notice

Pursuant to Civil Code section 1782, subdivision (a), of the CLRA, at least 30 days prior to the commencement of an action for damages, the consumer shall: "(1) Notify the person alleged to have employed or committed methods, acts, or practices declared unlawful by Section 1770 of the particular alleged violations of Sections 1770"; and "(2) [d]emand that the person correct, repair, replace, or otherwise rectify the goods or services alleged to be in violation of Section 1770." (Civ. Code, § 1782, subds. (a)(1)-(2).)

Here, as with Plaintiff's prior First Amended Complaint ("FAC") at paragraph 173, the SAC's claim for violations of the CLRA seeks costs, which amounts to damages and triggers CLRA notice duties for pleading purposes. (SAC, ¶ 181.)

For pleading purposes, Plaintiff argues that the Complaint alleges that "Plaintiff provided the required CLRA notice contemporaneously with the filing of the FAC," which took place on January 21, 2026, several months before the filing of the SAC on May 15, 2026, thus satisfying the notice requirement by providing notice well before the filing of the operative pleading, i.e., the SAC. (Opposition, p. 5.)

After review, the Court agrees with the spirit of Plaintiff's argument.

The SAC at paragraph 174 alleges that Plaintiff complied with the provisions of section 1782 by giving Defendants written

notice of the CLRA claim and Defendants failing to respond within 30 days of receipt thereof. This is sufficient for CLRA notice purposes insofar as ultimate facts sufficiently stand for the factual proposition that Plaintiff provided written notice by registered mail and more than 30 days elapsed without response from Defendants before Plaintiff's filing of the SAC. (Cf. *Morgan v. AT&T Wireless Servs., Inc.* (2009) 177 Cal.App.4th 1235, 1261 (Morgan) ["Because plaintiffs in this case alleged that they sent the required notice to [defendant] more than 30 days before they filed the third amended complaint and that [defendant] failed to correct the alleged wrongs, the trial court erred by sustaining the demurrer for failure to comply the CLRA notice requirements"].)

The Court briefly notes, as argued in GM's reply at pages 4-5, that paragraph 174 provides no temporal context for its allegations, i.e., no clarification as to whether notice took place before or after commencement of this action on April 8, 2025, or before or after the filing of the FAC on January 21, 2026, or before or after this Court's May 5, 2026, order. However, at the pleadings stage, and based on the allegations now before the Court, this omission is not fatal insofar as the SAC sufficiently alleges that Plaintiff properly mailed written notice of the CLRA claim to all Defendants and that all those Defendants failed to respond within 30 days (SAC, ¶ 174), providing sufficient ultimate (if not evidentiary) facts for CLRA notice at the pleadings stage.

The Court next rejects GM's argument that the SAC is a sham pleading due to some conflict with the allegations in the FAC. (See Reply, p. 5.) Under the sham pleading doctrine, "plaintiffs are precluded from amending complaints to omit harmful allegations, without explanation, from previous complaints to avoid attacks raised in demurrers or motions for summary judgment." (*Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 425.) Here, the Court's review fails to show any inconsistency in pleading between the FAC and the SAC as relates to CLRA notice. The FAC alleges that written CLRA notice was sent to GM by registered mail contemporaneously with filing of the FAC on January 21, 2026 (FAC, ¶ 165), while the SAC alleges more generally that written CLRA notice was given and 30 days elapsed with no response from GM before the SAC was filed (SAC, ¶ 174). There is no inconsistency there. At most, GM highlights the facts that (1) Plaintiff's CLRA claim, as stated in the FAC, did not allege proper notice, which this Court addressed when it sustained GM's demurrer to the FAC's CLRA claim for that very reason (May 5, 2026, Minutes, pp. 8-9), and (2) the SAC now alleges that proper notice was provided without providing temporal context therefor. Such recitation of the procedural history of CLRA notice in this action shows no inconsistency

in pleading.

Last, for the sake of completeness, the Court briefly notes that CLRA notice may be provided after an action has commenced by way of an amended pleading, provided that proper notice has been given under the CLRA. (*Morgan v. AT&T Wireless Servs., Inc.* (2009) 177 Cal.App.4th 1235, 1259-1261.)

Accordingly, GM's notice argument fails.

## ii. Sufficiency of Pleading

"The CLRA makes unlawful, ... '[27 distinct] unfair methods of competition and unfair or deceptive acts or practices undertaken by any person in a transaction intended to result or which results in the sale or lease of goods or services to any consumer.'" (*Meyer v. Sprint Spectrum L.P.* (2009) 45 Cal.4th 634, 639.) To establish a claim for violation of the CLRA, a plaintiff must prove (1) that the plaintiff acquired, or sought to acquire, by purchase or lease, the product or service for personal, family, or household purposes; (2) that the defendant engaged in a prohibited practice under section 1770; (3) that the plaintiff was harmed; and (4) that the plaintiff's harm resulted from defendant's conduct. (CACI No. 4700.) The plaintiff's harm resulted from defendant's conduct if the plaintiff relied on the defendant's representation. (CACI No. 4700; *Nelson v. Pearson Ford Co.* (2010) 186 Cal.App.4th 983, 1022, disapproved of on other grounds in *Raceway Ford Cases* (2016) 2 Cal.5th 161, 180.) To prove reliance, plaintiff need only prove that the representation was a substantial factor in the plaintiff's decision to buy or lease the goods. If the defendant's representation of fact was material, reliance may be inferred. A fact is material if a reasonable consumer would consider it important in deciding whether to buy or lease the goods or services. (CACI No. 4700; *Collins v. eMachines, Inc.* (2011) 202 Cal.App.4th 249, 256.)

Here, the SAC's fifth cause of action alleges that Defendants generally engaged in CLRA violations by way of four separate and distinct group of acts in relation to the 2024 Blazer and to the 2025 Blazer, leading to harm to Plaintiff, and supporting both equitable relief and money damages. (See SAC, ¶¶ 147-181.)

On demurrer, GM argues that the

fifth cause of action is not sufficiently alleged because the allegations of fraud supporting the claim are conclusory and do not sufficiently allege wrongdoing with the required specificity. (See Demurrer, pp. 6-8.)

After review, the Court disagrees with GM's position.

The court of appeal addressed the requirements for pleading vis-à-vis a CLRA claim in *Gutierrez v. Carmax Auto Superstores California* (2018) 19 Cal.App.5th 1234 (*Gutierrez*). After reviewing the pertinent case law, the *Gutierrez* court concluded that "causes of action under the CLRA ... must be stated with reasonable particularity, which is a more lenient pleading standard than is applied to common law fraud claims." (*Gutierrez*, *supra*, at p. 1261.)

Here, the CLRA claim is stated with reasonable particularity.

The SAC alleges that: "Plaintiff leased a 2024 Chevrolet Blazer ... for personal, family, and/or household purposes" (SAC, ¶ 5); that GM replaced the defective 2024 Blazer with a 2025 Chevrolet Blazer (SAC, ¶ 7); that in relation to the 2024 and 2025 Blazers, Defendants engaged in 4 of the 27 unfair business practice methods prohibited by the CLRA (SAC, ¶¶ 153-159, 160-163, 164-167, 168-170); and that Plaintiff was harmed by Defendants' conduct, thus supporting injunctive relief and money damages in Plaintiff's favor (SAC, ¶¶ 171-181).

While GM argues that the allegations of prohibited acts under the CLRA are conclusory and not pled with sufficient specificity (Demurrer, pp. 6-8; Reply, pp. 2-3), the Court's determination is that the SAC sufficiently alleges ultimate facts regarding the fraud at issue in Plaintiff's lease of the 2024 Blazer and the 2025 Blazer. (See, e.g., SAC, ¶ 169 [re: violation of Civ. Code, § 1770, subd. (a)(14), alleging that Defendants generally offered warranties regarding the proper operation and performance of the 2024 and 2025 Blazers, with the 2024 Blazer ultimately proving defective and GM replacing it with the 2025 Blazer despite knowing GM could not repair defective transmission issues contained the 2025 Blazer].)

Last, as relates to reliance, the Court notes that two reasonable inferences can be drawn from the above allegations:

(1) Defendants' representations that the vehicle was free from defects and that any defect occurring during the warranty period would be conformed to law could be read as material to Plaintiff's decision to lease the 2024 Blazer and the 2025 Blazer; and (2) Plaintiff relied on these representations in leasing the subject vehicles.

Under the above circumstances, the SAC sufficiently alleges a CLRA claim, and GM's second argument against the fifth cause of action fails.

#### d. Conclusion

Defendant General Motors, LLC's demurrer is accordingly OVERRULED.

#### Motion to Strike

#### Meet and Confer

The moving papers establish a sufficient meet and confer process preceded the filing of GM's motion. (Motion, Roybal Decl., ¶ 2; see Code Civ. Proc., § 435.5, subd. (a)(3)(A).)

#### b. Legal Standard

The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (a) strike out any irrelevant, false, or improper matter inserted in any pleading; or (b) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc. § 436, subds. (a), (b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].)

#### Discussion

Quoted directly from its notice of motion, GM brings its motion seeking an order striking "allegations related to the 2024 Chevrolet Blazer EV, VIN 3GNKDBRJ0RS215010 ('2024 Blazer'), as



Plaintiff was not in possession of the 2024 Blazer at the time she filed her Complaint and therefore cannot maintain claims under the SBA. (See SAC, ¶¶ 5- 7, 14-16, 18-22, 41-42, 102-107, 111, 114-117, 119-121)." (Motion, 2:2-5 [in Notice of Motion].)

After review, and for reasons not raised in the papers, the Court DENIES GM's motion.

California Rules of Court, rule 3.1322(a) requires that "[a] notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense," where such "[s]pecifications in a notice must be numbered consecutively."

Here, the notice of motion seeks the above quoted relief without in any way verbatim quoting the allegations at issue, at most using the "See" signal to point to numerous paragraphs in the SAC in which GM purports allegations relating to the 2024 Blazer are raised. (Motion, 2:2-5; see also Motion, Proposed Order [framed as the Court granting relief without specifying matter to be stricken].) This is more detrimental than helpful to GM insofar as the California Style Manual designates the "See" signal as used to "precede citations to cases that only indirectly support the text, citations to supporting dicta, and citations to a concurring or dissenting opinion" and "never [to be] use[d] [...] to support a direct quote." (Edward W. Jessen et al., California Style Manual (4th ed. 2000) Introductory Signals, § 1.4 at pp. 9-10m emphasis added.)

Under these circumstances, not only does GM fail to comply with California Rules of Court, rule 3.1322(a), but more generally imposes a burden on this Court to go on a fishing expedition through the SAC to find allegations relating to the 2024 Blazer.

This omission is compounded by the moving papers' failure to make reasonable arguments distinguishing which allegations in the SAC vis-à-vis the 2024 Blazer are mere background for the SAC's claims and which allegations amount to actionable conduct supporting the claims stated in the SAC. This is problematic because the entire thrust of GM's motion to strike appears to be that any allegations relating to the 2024 Blazer must be stricken from the Complaint as immaterial, even if, for example, those allegations include background facts regarding the 2024 Blazer being

Plaintiff's initial lease vehicle, which was then replaced with a 2025 Blazer after the 2024 Blazer experienced defects that Plaintiff reported to Defendants. (See, e.g., Motion, p. 4 ["The allegations regarding Plaintiff's 2024 Blazer[] [...] should be stricken from Plaintiff's SAC, as Plaintiff was not in possession of the 2024 Blazer at the time she filed her Complaint," for which reason the 2024 Blazer allegations "are improper and cannot support [Plaintiff's] Song-Beverly claims"]; see also SAC, ¶¶ 5-7 [referenced allegations].)

Another practical issue with the notice before the Court is that if GM is arguing that references to the 2024 Blazer cannot support the SBA claims in the SAC (Motion, 4:9-12), and if the SBA claims are limited to paragraphs 101 to 123 of the SAC, and if GM has failed to clarify which allegations in the factual background of the SAC are necessary background rather than actionable conduct, then the request intimated in GM's notice of motion is overbroad insofar as it references "SAC, ¶¶ 5- 7, 14-16, 18-22, 41-42, 102-107, 111, 114-117, 119-121," which goes well beyond paragraphs 101 to 123 of the SAC, all without meaningful discussion related thereto, e.g., what is background and what is actionable conduct.

#### d. Conclusion

For all the above reasons, Defendant General Motors, LLC's motion to strike is DENIED.

Defendant General Motors, LLC is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at [email protected] indicating intention to submit on the tentative as directed by the instructions provided on the court website at [www.lacourt.org](http://www.lacourt.org). If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 1, 2026 \_\_\_\_\_

MARK C. KIM

Judge of the Superior  
Court